
of votes shall be sufficient to elect. In case of a tie vote, the candidates who have received the same number of votes shall draw lots for the office in question. The lots shall be prepared by the board of election judges, the drawing shall take place in their presence, and they shall certify to the fact of the drawing and to the result in the election returns.

[1397-12.]

SECTION 2306. *Procedure where Member of Provincial Board is Incompetent.* — If any member of the provincial board should be a candidate for office in any election conducted under the provisions of sections two thousand two hundred and ninety-eight to two thousand three hundred and five, inclusive, hereof, he shall be incompetent to act upon the board in the discharge of the duties conferred upon it in said sections; and in such case the other two members of the board shall discharge said duties without his assistance, or they may choose some disinterested elector of the province to act on the board in such matters in his stead.

SECTION 2307. *Declination of Township Office Prohibited.* — A person elected by the people to fill a township office shall not be permitted to decline the same, but shall qualify and discharge the duties thereof, unless before election he shall have presented to the judges of election, and established to their satisfaction, a claim for exemption on the ground:

- (a) That he has discharged the duties of the same office for two previous terms; or
- (b) That he is physically disabled; or
- (c) That he is more than sixty-five years of age.

[1397-24.]

SECTION 2308. *Declaration of Vacancy in Office — Resignations.* — Should any elective township officer become permanently incapacitated for the proper discharge of his duties during his term of office, through accident or disease, his office may be declared vacant by the vote of a majority of all the members of the council, and his successor shall be promptly chosen, also by a majority vote of all the members. Any elective township officer who has qualified may be allowed to resign in the interest of the public service, with the approval of the provincial board.

[1397-26.]

ARTICLE IV